

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 18, 2026
8:30 a.m./1:30 p.m.

2. CARLEY BAGATELOS V. THEODORE BAGATELOS

25FL1006

On March 23, 2026, Respondent filed a Request for Order (RFO) seeking to stay proceedings. There is no Proof of Service for this document therefore the matter is dropped from calendar due to lack of proper service.

Petitioner filed an RFO on May 29, 2026, seeking child support orders. She filed her Income and Expense Declaration on May 28th.

Because this was originally filed as part of an Order Shortening Time (OST), Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on May 29th.

Petitioner filed and served a supplemental declaration on June 4th.

On June 12th, Respondent filed and served a supplemental declaration and Respondent's Declaration Re: Good Cause to Consider Supplemental Declaration.

Petitioner filed an objection to the supplemental declaration. She objects to the supplemental declaration as untimely pursuant to Local Rule 8.05.04 and Civil Procedure § 1010. The objection is sustained. The court has read and considered Respondent's declaration regarding good cause and the court does not find that the facts contained therein constitute good cause to consider the late filed supplemental declaration. As such, Respondent's June 12, 2026 Supplemental Declaration has not been read or considered.

Petitioner is requesting guideline child support for each of the children. She asks that Respondent be imputed with income in the amount of \$7,800 and she asks that support be retroactive back to the date of filing the RFO.

Respondent stipulates to the imputation of income in the amount of \$7,800. He states that he has visits with the children twice per week at two hours per visit.

Utilizing the same figures as outlined above, the court finds that child support is \$2,413 per month. See attached Xspouse report. The court adopts the attached Xspouse report and orders Respondent to pay Petitioner \$2,413 per month as and for child support, payable on the 1st of the month until further order of the court or legal termination. This order for child support is effective June 1, 2026.

The court finds the above order results in arrears in the amount of \$2,413 through and including June 1, 2026. The court orders Respondent pay Petitioner \$201.08 on the

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15th of each month until paid in full (approximately 12 months). If any payment is missed or late the entire amount shall become immediately due and payable with legal interest.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: RESPONDENT'S MARCH 23, 2026 RFO IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE. PETITIONER'S OBJECTION TO RESPONDENT'S JUNE 12, 2026 SUPPLEMENTAL DECLARATION IS SUSTAINED. THE SUPPLEMENTAL DECLARATION HAS NOT BEEN READ OR CONSIDERED.

UTILIZING THE SAME FIGURES AS OUTLINED ABOVE, THE COURT FINDS THAT CHILD SUPPORT IS \$2,413 PER MONTH. SEE ATTACHED XSPOUSE REPORT. THE COURT ADOPTS THE ATTACHED XSPOUSE REPORT AND ORDERS RESPONDENT TO PAY PETITIONER \$2,413 PER MONTH AS AND FOR CHILD SUPPORT, PAYABLE ON THE 1ST OF THE MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THIS ORDER FOR CHILD SUPPORT IS EFFECTIVE AS OF JUNE 1, 2026.

THE COURT FINDS THE ABOVE ORDER RESULTS IN ARREARS IN THE AMOUNT OF \$2,413 THROUGH AND INCLUDING JUNE 1, 2026. THE COURT ORDERS RESPONDENT PAY PETITIONER \$201.08 ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 12 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE WITH LEGAL INTEREST.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	0	3	2026				
% time with NCP	2.00 %	0.00 %	GUIDELINE		Comb. net spendable	12116	12116
Filing status	MFS->	<-MFS	Nets(adjusted)		Percent change	0%	0%
# exemptions	1 *	4 *			Father		
Wages+salary	0	8872	Father	5530	Payment cost/benefit	-2413	-2413
Self-employed income	7800	0	Mother	6586	Net spendable income	3117	3117
Other taxable income	0	0	Total	12116	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	26%	26%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	-2413	Total taxes	2270	2270
401(k) employee contrib	0	0	Alameda SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	-2413	# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	0	0
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	0	0			Payment cost/benefit	2413	2413
Other medical expense	0	0			Net spendable income	8999	8999
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	74%	74%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	-2413	Total taxes	1575	1575
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	0	0	Total	-2413	# withholding allowances	0	0
Mandatory retirement	0	711			Net wage paycheck	6172	6172
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	1 - 99	0	0	0	Father	2413	Father	2413	Father
	2 - 98	0	0	0	Father	461	Father	461	Father
	2 - 98	0	0	0	Father	718	Father	718	Father
	2 - 98	0	0	0	Father	1234	Father	1234	Father

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3. KAYLA BURGESS V. KYLE BURGESS

23FL0919

On December 26, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 20, 2026.

There is no Proof of Service for the RFO or the CCRC referral and only Petitioner attended the scheduled CCRC appointment.

On February 2, 2026, Respondent filed Respondent's Supplemental Declaration Re: Child Custody Recommending Counseling. It was served on January 28th.

Respondent filed a Responsive Declaration to Request for Order on March 9th. It was served on March 6th.

After reviewing the filings by Respondent, it does appear that he has actual knowledge of the RFO and the CCRC referral and he is not objecting to service, therefore, the court finds any potential defect in service was waived and the matter may be reached on the merits.

The matter came before the court on March 26th at which time the parties were re-referred to CCRC and a review hearing was set for the present date.

On April 23, 2026, only Respondent appeared for the CCRC appointment. The RFO is dropped from calendar due to the failure of the moving party, Petitioner, to attend the CCRC appointment.

TENTATIVE RULING #3: THE RFO IS DROPPED FROM CALENDAR DUE TO THE FAILURE OF THE MOVING PARTY, PETITIONER, TO ATTEND THE CCRC APPOINTMENT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.